

2:00 PM

LINE: 7

25-CLJ-00488

WELLS FARGO BANK, N.A. VS. INAS S SHAABAN

WELLS FARGO BANK, N.A.
INAS S SHAABAN

HARLAN M. REESE
PRO SE

DEFENDANT INAS SHAABAN'S MOTION TO QUASH SUMMONS

TENTATIVE RULING:

As an initial matter, Defendant's notice identifies an incorrect hearing location. Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, California 94080. (See Cal. Rules of Court, rule 3.1110 [the notice "must specify" the location of the hearing].)

For the following reasons, the Motion to Quash Service of Summons (the "Motion") brought by specially appearing defendant Inas S. Shaaban ("Specially Appearing Defendant") is **DENIED**.

BACKGROUND

According to the Complaint, the parties entered into a credit card agreement on or about November 1, 2017. (Complaint, box BC-1 & Exh. A.) Plaintiff seeks to recover \$13,400.93 in damages, together with attorney's fees and costs according to proof, less any payments not already credited. (Id., boxes 10, BC-4, & BC-5.) Plaintiff alleges that Specially Appearing Defendant breached the agreement by failing to make the required payments. (Id., box BC-2.)

Through the Motion, Specially Appearing Defendant seeks an order quashing service of the summons on the ground that the Court lacks personal jurisdiction because service of the summons and complaint was defective. (Code Civ. Proc., § 418.10, subd. (a)(1).)

DISCUSSION

A motion to quash service of summons for lack of personal jurisdiction is an evidentiary motion. When the evidence concerning jurisdictional facts is conflicting, the trial court resolves those factual disputes, and its findings will not be disturbed on appeal if supported by substantial evidence. (*Messerschmidt Dev. Co. v. Crutcher Resources Corp.* (1978) 84 Cal.App.3d 819, 825, citing *Wilson v. Eddy* (1969) 2 Cal.App.3d 613, 617-618.)

Specially Appearing Defendant declares that she learned of this lawsuit from a legal aid attorney who is not representing her. (Shaaban Decl., ¶ 3.) However, neither a default nor a judgment has been entered in this action. She further declares that she had not resided at the address where service was attempted for approximately four years before January 7, 2026. (Id., ¶¶ 2, 4, & 5.) That four-year period includes October 16

and 17, 2025, the dates on which substituted service was purportedly effected. (Proof of Service ("PoS"), filed Oct. 17, 2025.)

Accordingly, Specially Appearing Defendant contends Plaintiff failed to effect personal service and did not satisfy the statutory requirements for substituted service because the address where service was attempted was not her dwelling house, usual place of abode, usual place of business, or usual mailing address. (Code Civ. Proc., § 415.20, subd. (b).) She therefore argues that service of summons should be quashed. (Code Civ. Proc., § 418.10, subd. (a)(1).)

However, the registered California process server's Proof of Service gives rise to the rebuttable presumption established by **Evidence Code section 647** that the facts stated therein are true. Those facts include the process server's declarations that:

"I delivered the documents to an individual who refused to give their name who identified themselves as the co-resident"; and

"When I'm about to leave a Female Individual answered the door She confirmed that the subject is a resident but not available."

(PoS, box 5.b.)

These declarations constitute evidence that Specially Appearing Defendant resided at the address where substituted service was attempted.

Specially Appearing Defendant filed no reply. Even considering her declaration as rebuttal evidence, it consists solely of her own statement without corroborating evidence. Weighing the competing evidence, the Court concludes that the statutory presumption arising from the registered process server's Proof of Service has not been overcome. The Court therefore finds that substituted service was properly effected.

Plaintiff also submits evidence from the United States Postal Service and the registered California process server tending to show that Specially Appearing Defendant received mail at the address where substituted service was attempted during the relevant time period. (McKee Decl., ¶¶ 8-18 & Exhs. A-D.) Plaintiff further lays a proper foundation for admission of those records under the business records exception to the hearsay rule. (McKee Decl., ¶¶ 1-7.) Although the exhibits may contain additional layers of hearsay, some of those statements likewise appear to fall within the business records exception. In any event, Specially Appearing Defendant has asserted no evidentiary objections. This evidence further supports the Court's finding that substituted service was validly effected.

Plaintiff also argues that the Motion is untimely. Code of Civil Procedure section 418.20, subdivision (a), requires a motion to quash to be filed on or before the last day to plead. According to the Proof of Service, substituted service was completed on October 17, 2025. Accordingly, Defendant's time to respond expired on November 26, 2025. (Code Civ. Proc., § 415.20, subd. (b).) The Motion, filed on January 7, 2026, is also untimely.

Accordingly, the Motion is **DENIED**.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

**UD LAW AND MOTION CALENDAR
THURSDAY, JULY 16, 2026**

2:00 PM

LINE: 1

26-UDL-00079

473-475 GRAND AVE LLC VS. ARTURO PEREZ, ET AL

**473-475 GRAND AVE LLC
ARTURO PEREZ**

**JOANNA KOZUBAL
PRO SE**

PLAINTIFF 473-475 GRAND AVE LLC'S MOTION TO ENFORCE SETTLEMENT AGREEMENT PER CCP 664.6 AND FOR JUDGMENT PURSUANT TO STIPULATION

TENTATIVE RULING:

For the reasons stated below, the Motion to Enforce Settlement Agreement under Code of Civil Procedure section 664.6 and for Entry of Judgment Pursuant to Stipulation, filed by Plaintiff 473-475 Grand Ave, LLC ("Plaintiff"), is **DENIED WITHOUT PREJUDICE**.

First, Plaintiff has not established proper service of the motion on Defendants Arturo Perez and Rubenia Elizabeth Zuniga ("Defendants"). The proof of service states that both Defendants were served electronically at a single email address: andrewperez2129@gmail.com. Defendants are self-represented, and the Court's records contain no evidence that either Defendant expressly consented to electronic service. (Code Civ. Proc., § 1010.6, subd. (c)(2), (3).) Electronic filing alone does not constitute express consent to electronic service. (Id., subd. (c)(3)(ii).) Moreover, even if electronic service were authorized, Plaintiff has not established that this single email address is a valid electronic service address for both Defendants.

Second, the notice of motion does not state the courthouse address for Department 2. The first page of each paper must specify the date, time, and location, if ascertainable, of the scheduled hearing. (Cal. Rules of Court, rule 3.1110(b)(1).) The notice is therefore deficient.

If the tentative ruling is uncontested, it will become the order of the Court. Because Defendants are self-represented, counsel for Plaintiff shall prepare, serve, and submit a proposed order that repeats this tentative ruling verbatim, in accordance with California Rules of Court, rule 3.1312, and San Mateo County Superior Court Local Rule 3.403(b)(iv). Plaintiff shall provide written notice of the ruling to all parties who have appeared in the action, as required by law.

2:00 PM

LINE: 2

26-UDL-00367

NRT PROPERTIES LLC VS. LIZA SCATENA, ET AL

**NRT PROPERTIES LLC
LIZA SCATENA**

**GRANT H. BAKER
CARLOS G. MARTINEZ**

PLAINTIFF NRT PROPERTIES LLC'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

TENTATIVE RULING:

The unopposed motion is granted. Plaintiff shall file the proposed amended complaint no later than July 23, 2026.

Posted: 3:00 P.M.

